

TENTATIVE RULING

The Don Chapin Co., Inc.

v.

Nader T. Agha, et al.

25CV005499

Plaintiff's Motion to Enter Judgment Pursuant to the Terms of the Settlement Agreement

Hearing Date: August 7, 2026

The hearing on the motion of The Don Chapin Co., Inc. ("Plaintiff") to enter judgment according to the terms of the settlement with Defendants Nader T. Agha, dba Agha Development, and HMBY, L.P. (collectively, "Agha") is **CONTINUED** to October 2, 2026, at 8:30 a.m. in Department 14. The continuance allows Defendant Casco Financial, Inc. ("Casco") or any other party opposing the motion to address the issues raised in Plaintiff's reply.

Plaintiff's reply essentially functions as a revised motion. In its reply, Plaintiff's revised proposal significantly alters the relief outlined in the settlement agreement and introduces new procedures for determining lien priority and sheriff's sale distributions. While the court can interpret the terms of the parties' settlement agreement, nothing in Code of Civil Procedure section 664.6 authorizes the court to establish the substantive terms of a settlement, such as bifurcation of the judgment as requested in the Reply. [*See Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 797, 810.] Because the "revised motion" was not properly noticed, and opposing parties have not had a fair opportunity to respond, it cannot be adopted as part of this motion.

Therefore, the Court, in its discretion, continues the hearing to October 2, 2026, at 8:30 a.m. in Department 14, to allow Casco or any other party opposing the motion to respond to Plaintiff's reply, which is essentially a revised motion. Opposition and reply papers are due pursuant to Code of Civil Procedure section 1005, subdivision (b). The parties are strongly encouraged to meet and confer to reach a new agreement.

Plaintiff shall prepare the Proposed Order consistent with this Tentative Ruling.

NOTE RE TENTATIVE RULING

This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.** You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.